

25NWCV00012 25NWCV00012

County: los-angeles

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Case Number: 25NWCV00012 Hearing Date: July 27, 2026 Dept: C

REYES vs CLASSIC

EXTERIORS & CONSTRUCTION

CASE NO.: 25NWCV00012

HEARING: 7/27/26 @

9:30 AM

#19

TENTATIVE RULING

Defendants RYAN WINTERS

and CHRIS KRANES's Unopposed Demurrer to the First Amended Complaint is SUSTAINED

in part without leave to amend and OVERRULED in part. Defendants Ryan Winters and Chris Kranes to answer within 10 days.

Moving party to give

NOTICE.

Defendants

RYAN WINTERS and CHRIS KRANES (Defendants) demur to Pro Per Plaintiff STELLA

REYES's (Plaintiff) First Amended Complaint (FAC) on the grounds that it is uncertain, ambiguous, and unintelligible. Additionally, Defendants

demur to the FAC on the grounds that each cause of action is barred by the applicable statutes of limitation.

Defendants contend that they were first named in the First Amended

Complaint on November 26, 2025, but the conduct alleged against them occurred

in 2020.

No

opposition as of July 24, 2026.

BACKGROUND

Plaintiff

filed this breach of contract lawsuit against Defendant Classic Exteriors & Construction on January 3, 2025. By way of reference, the Complaint alleges that Plaintiff is the owner of 16240 Shady Valley Lane, Whittier, CA 90603. Between July 2020 and August 2020, Plaintiff entered into a series of eight contracts with Defendant to make various repairs to the Property. Defendant began work on site at the subject Property on July 27, 2020 and stopped working at the subject property on August 17, 2020. The Defendant did not complete the work that was promised to Plaintiff. Furthermore,

Defendant left the work incomplete and it was substandard. Defendant no longer answered the phone. Defendant failed to contact the Plaintiff to

complete the work promised. Defendant

went out of business on December 23, 2020. Plaintiff received an invoice from a collection agency, Service Finance Company, LLC., on behalf of Defendant on or about October 09, 2024 demanding the amount of \$21,656.03. The due date on the invoice was on December 23, 2020.

On

November 20, 2025, the Court granted Plaintiff leave to amend the Complaint to add the individual owners, officers, and/or agents of Classic Exteriors & Construction, Inc. who personally committed the acts of fraud and financial elder abuse alleged in the original Complaint. The corporation was dissolved on December 30, 2020, but Plaintiff sought leave to name the owners and officers of the corporation who engaged in fraudulent acts before the corporation's dissolution.

The

operative First Amended Complaint was filed on November 26, 2025. Plaintiff alleges that Ryan Winters, Chris Kranes, and Kelli Wilkins personally engaged in the fraud and elder financial abuse, and these individuals may be liable personally as owners, officers, or agents of the corporation. (FAC, ¶ 4.) Plaintiff dismissed Kelli Wilkins on May 5, 2026.

Plaintiff

asserts the following causes of action:

1.

Breach of Contract

2.

Breach of Implied Covenant of Good Faith and Fair
Dealing

3. Fraud

4. Financial Elder Abuse

5. Unfair Business Practices

6. Negligence

7. Unjust Enrichment

8. Declaratory Relief

LEGAL

STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore

Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

DISCUSSION

First through
Seventh Causes of Action

Defendants

demur to the FAC on the grounds that each cause of action is time barred because they were first named in the FAC on November 26, 2025, but the conduct alleged against them occurred in 2020.

Contract-based

claims are governed by Code of Civil Procedure section 337, which provides for a four-year limitations period for written agreements; section 339 subjects oral contracts to a two-year limitations period. Fraud, unjust enrichment sounding in fraud, and negligence causing property damage are all subject to a three-year statute of limitations. (Cal. Civ. Proc. Code § 338, subds. (b), (d).) UCL claims are subject to a four-year limitations period. (Cal. Bus. & Prof. Code § 17208.) As are elder abuse claims. (Cal. Welf. & Inst. Code §15657.7.) Breaches of the implied covenant of good faith and fair dealing are subject to a two-year limitations period. (Cal. Civ. Proc. Code § 339(1).)

Under the

delayed discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing. (Metabyte, Inc. v. Technicolor S.A. (2023) 94 Cal.App.5th 265, 281.) As previously noted, the original Complaint alleged that “Defendant began work on site at the subject Property on July 27, 2020 and stopped working at the subject property on August 17, 2020.” (Complaint, ¶ 16, italics added.) The

FAC contains no such allegation, but it does state the following:

“Each cause

of action from the original Complaint is realleged against all Defendants:

Classic Exteriors, Winters, Kranes, and Wilkins. This includes: breach of contract, breach of implied covenant, fraud, elder abuse, unfair business practices, negligence, unjust enrichment, and declaratory relief. The allegations are updated to state that Winters, Kranes, and Wilkins personally made misrepresentations, directed the fraudulent scheme, and benefited from funds obtained from Plaintiff.” (FAC, p. 3.)

To the extent

that the FAC incorporates the factual allegations in the original Complaint, the first through seventh causes of action are time-barred because statute of limitations began to run as early as August 17, 2020, when Defendants stopped working on the Property, and no later than December 23, 2020, when Classic Exteriors & Constructions, Inc. dissolved.

The lawsuit was filed on January 3, 2025, after the four-year statute of limitations had already expired.

Even if the

FAC superseded the original Complaint, which is the general rule, Plaintiff does not explain why the Court should disregard the allegations in the original Complaint relevant to discovery of wrongdoing. Allegations in the original pleading that rendered it vulnerable to demurrer cannot simply be omitted without explanation in the amended pleading. (Vallejo Develop. Co. v. Beck Develop. Co. (1994) 24 Cal.App.4th 929, 946 (discussing sham pleading doctrine).) Thus, Plaintiff is barred from asserting that the statute of limitations was tolled.

Accordingly,

the demurrer to the first through seventh causes of action is SUSTAINED without leave to amend.

8th

CAUSE OF ACTION: Declaratory Relief

To

qualify for declaratory relief, an action must present two essential elements:

(1) a proper subject of declaratory relief, and (2) an actual controversy

involving justiciable questions relating to the rights or obligations of a party. Cal. Civ. Proc. Code § 1060. The “actual controversy” language in the declaratory judgment statute encompasses a probable future controversy relating to the legal rights and duties of the parties, but it does not embrace controversies that are conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court. Cal. Civ. Proc. Code § 1060. (Lee v. Silveira (2016) 6 Cal.App.5th 527.)

Plaintiff

alleges she “received an invoice from a collection agency, Service Finance Company, LLC., on behalf of Defendant on or about October 09, 2024 demanding the amount of \$21,656.03. The due date on the invoice was on December 23, 2020.” (Complaint, ¶ 19.) Plaintiff seeks “Declaratory relief determining that Plaintiff is not liable for any additional charges or invoices demanded by Defendants.” (FAC, p. 4.) The Court finds that Plaintiff alleges sufficient facts to state a cause of action for declaratory relief.

Accordingly,

the demurrer to the eighth cause of action is OVERRULED. Defendants Chris Kranes and Ryan Winters to answer within 10 days.